

Court No. - 1

Case :- WRIT - C No. - 41342 of 2019

Petitioner :- Malti Sharma

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And 3 Others

Counsel for Petitioner :- Ram Chandra Yadav

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Ramesh Sinha,J.

Hon'ble Samit Gopal,J.

Heard Sri Ram Chandra Yadav, learned counsel for the petitioner, Sri Baleshwar Chaturvedi, learned Counsel for the respondent nos.3 and 4, learned Standing Counsel for respondent nos.1, 2 and perused the record.

The petitioner by means of the present petition, has prayed for direction in the nature of mandamus directing the respondent nos.1 and 2 to grant the electric connection in the house of petitioner forthwith.

The controversy has arisen on account of landlord tenant dispute between the petitioner and respondent nos.3 and 4. The facts as have pleaded in the present writ petition is that the petitioner is the tenant of house of which the respondent nos.3 and 4 are the landlord/owner. The petitioner used to resident in the house in question as tenant from the time of father of the respondent nos.3 and 4 who including their father leased out the house in question with the facility of the electric through their own electric connection. The petitioner also filed civil suit against respondent nos.3 and 4 seeking permanent injunction in the court of Civil Judge (J.D), Mainpuri for restraining the respondents from evicting the petitioner from the house in question. Thereafter the respondent nos.3 and 4 got the electricity connection disconnected provided by them on account of which petitioner applied for fresh electricity connection to the respondent no.1. The petitioner has been under serious threat of eviction by unauthorized way from the premises in question. She also submitted Indemnity Bond 4.2 of the U.P. Electricity Supply Code, 2005 but instead of granting the electricity connection, she has been further directed to supply further documents of proof of possession.

According to the pleadings, as have been raised in the present writ petition, the petitioner applied for a new electricity connection. However, he submits, till date no action has been taken for grant of electricity connection to him.

We have gone through the relevant provisions as contained under Chapter IV, particularly clauses 4.1, 4.3 and 4.4 of Electricity Supply Code, 2005, which cast obligation upon the licensee namely the respondents herein, to consider the application/representation of the petitioner for new electricity connection and if otherwise there is no legal impediment, to ensure that electricity connection is granted speedily within a month.

We find no justification, therefore, for inaction on part of the respondents to linger on the matter and not to take any decision either to grant electricity connection or to refuse the same for the reasons to be accorded.

In such view of the matter, we are disposing of the writ petition with a direction to the respondent no.1 to consider the application/representation of the petitioner for grant of new electricity connection and pass a reasoned and speaking order, either way, positively within a period of four weeks from the date of production of certified copy of this order.

With the aforesaid observations and directions, the writ petition stands disposed of.

(Samit Gopal, J.)

(Ramesh Sinha, J.)

Order Date :- 13.12.2019

Gaurav